

24CV02395 Joshua Cahill vs Marriott International Inc et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-05-29

Motion: Motion: Approval

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Tentative Ruling: Joshua Cahill vs Marriott International Inc et al

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Case Type

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Hearing Date / Time

Fri, 05/29/2026 - 10:00

Nature of Proceedings

Motion: Approval

Tentative Ruling

For the reasons stated herein, the motion of plaintiff for preliminary approval of class action and PAGA granted.

The court has reviewed the proposed order submitted with the motion and intends on signing the same. The relevant terms include:

Preliminary approval of the settlement set forth in the Class Action and PAGA Settlement Agreement is granted;

The proposed settlement class is conditionally certified;

Plaintiff Joshua Cahill is provisionally appointed as the representative of the settlement class;

Joanna Ghosh, Yasmin Hosseini, and Daniel Bass of Lawyers for Justice, PC are provisionally appointed as class counsel;

Distribution of the proposed notice of class action settlement to the settlement class is approved;

ILYM Group, Inc. is provisionally appointed as the third-party settlement administrator;

A hearing on Final Approval of Settlement is set for December 4, 2026, at 10:00 a.m. in Department 4.

All documents related to the final approval, fees, costs, and enhancement award, shall be filed no later than 16 court days prior to the final approval hearing date.

Background:

The first amended complaint (FAC) filed in this action by plaintiff Joshua Cahill alleges that in October 2023, plaintiff was employed by Marriott International, Inc. (Marriott), Residence Inn By Marriott, LLC (Residence Inn), and Courtyard Management LLC (Courtyard) (collectively, Defendants), as an hourly, non-exempt employee in Santa Barbara, California. Defendants failed to pay plaintiff minimum and overtime wages, to provide or pay for missed meal and rest periods, to pay wages owed upon discharge or resignation, to provide complete and accurate wage statements reflecting the total number of hours worked by plaintiff, to keep complete and accurate payroll records, and to reimburse plaintiff for necessary business related expenses.

Plaintiff filed his original complaint against Marriott and Residence Inn on April 29, 2024, asserting ten causes of action: (1) violation of Labor Code sections 510 and 1198; (2) violation of Labor Code sections 226.7 and 512, subdivision (a); (3) violation of Labor Code section 226.7; (4) violation of Labor Code sections 1194, 1197, and 1197.1; (5) violation of Labor Code sections 201 and 202; (6) violation of Labor Code section 204; (7) violation of Labor Code section 226, subdivision (a); (8) violation of Labor Code section 1174, subdivision (d); (9) violation of Labor Code sections 2800 and 2802; and (10) violation of Business and Professions Code section 17200 et seq.

On June 13, 2024, Marriott and Residence Inn filed their answer to plaintiff's complaint, generally denying its allegations and asserting affirmative defenses.

On October 27, 2025, with leave of court, plaintiff filed his operative FAC against Defendants, asserting the same ten causes of action against Defendants described above and adding an eleventh cause of action for violation of Labor Code section 2698 et seq. (the Labor Code Private Attorneys General Act of 2004 or PAGA). The FAC is brought on behalf of plaintiff; all current and former non-exempt employees of Defendants who were employed at the Residence Inn Santa Barbara Goleta or the Courtyard Santa Barbara Goleta from April 29, 2020; and all current or former employees of Defendants employed at the Residence Inn Santa Barbara Goleta or the Courtyard Santa Barbara Goleta from February 22, 2023. (FAC, ¶¶ 15 & 22.)

Defendants have not filed an answer to the FAC with the court.

On December 18, 2025, plaintiff filed an unopposed motion for an order granting preliminary approval of a proposed class action settlement described in a "Joint Stipulation of Class Action and PAGA Settlement" (the Settlement Agreement); certifying a settlement class; appointing plaintiff as the representative of the settlement class; appointing Joanna Ghosh, Yasmin Hosseini, and Daniel Bass of Lawyers for Justice, PC, as counsel for the settlement class; approving a proposed "Notice of Class Action Settlement" (the Class Notice); directing the mailing of the Class Notice in accordance with the Settlement Agreement; approving ILYM Group, Inc., as the settlement administrator; and scheduling a final approval hearing.

At the original hearing on the motion, because plaintiff failed to file a complete copy of the proposed Class Notice, the hearing was continued, and plaintiff was ordered to provide a supplemental declaration or brief in support of the motion and to provide a complete copy of the proposed Class Notice. On May 12, 2026, plaintiff's counsel filed a supplemental declaration with the complete proposed Class Notice attached.

Analysis:

The purpose of the preliminary approval hearing is to determine whether the settlement is within the range of reasonableness for preliminary approval and to approve or deny certification of a provisional settlement class. A full inquiry into the fairness of the proposed settlement occurs at the final approval hearing. (Rules of Court, rule 3.769, subd. (g).)

“The court has a fiduciary responsibility as guardians of the rights of the absentee class members when deciding whether to approve a settlement agreement.” (Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 129.) The court has broad discretion to determine whether the settlement is fair. (Dunk v. Ford Motor Co.) (1996) 48 Cal.App.4th 1794, 1801.) “The well-recognized factors that the trial court should consider in evaluating the reasonableness of a class action settlement agreement include ‘the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement.’ [Citations.] This list ‘is not exhaustive and should be tailored to each case.’ [Citation.]” (Kullar v. Foot Locker Retail, Inc., supra, 168 Cal.App.4th at p. 128.)

A PAGA action is a type of qui tam action, in which a private party is authorized to bring an action to recover a penalty on behalf of the government and receive part of the recovery as compensation. (Huff v. Securitas Sec. Servs. USA, Inc. (2018) 23 Cal.App.5th 745, 753.) In doing so, the employee acts as proxy for the state labor law enforcement agency; the proceeding is designed to protect the public, not to benefit private parties. (Amalgamated Transit Union, Local 1756, AFL-CIO v. Superior Court (2009) 46 Cal.4th 993, 1003.) The dispute is between the employer and the state. (Kim v. Reins International California, Inc. (2020) 9 Cal.5th 73, 81.) The purpose of PAGA is not to recover damages, restitution, or redress the employees’ injuries, but to recover civil penalties to remediate present violations and deter future ones. (Id. at p. 86.) While a PAGA case is representative in nature, it is not a class action and may be brought without the procedural requirements involved in class actions.

Prior to January 1, 2026, Labor Code section 2699, subdivision (i) mandated that PAGA civil penalties be allocated 75% to the California Labor and Workforce Development Agency (“LWDA”), for enforcement of labor laws and education of employers and employees about their rights and responsibilities under the code, and 25% to the aggrieved employees. Section 2699(l)(2) required that the superior court review and approve any penalties sought as part of a proposed settlement agreement, pursuant to that part of the code. The code section, as was effective prior to January 1, 2026, is applicable to this action because the action was filed prior to June 19, 2024, and the PAGA Notice was served on February 22, 2024. (see Lab. Code, § 2699, subd. (v).)

On February 25, 2025, the parties participated in a mediation with Eve Wagner and, following several weeks of further negotiations through Wagner, the parties agreed to settlement terms. (Bass decl., ¶ 27 & Exh. B ¶ 7.) Pursuant to the executed agreement, the parties stipulate to settlement of the class action and PAGA claims, including the following:

The Class Period means the period from April 29, 2020, through the date of Preliminary Approval or an earlier date as the Companies’ may elect in accordance with Paragraph 43. (Agreement, ¶ 10, subd. (f).) The PAGA Period means the period from February 22, 2023, through the date of Preliminary Approval or an earlier date as the Companies’ may elect in accordance with Paragraph 43. (Agreement, ¶ 10, subd. (y).) “Class Members” or “Class” means all current and former non-exempt employees of the Companies in California employed at the Residence Inn Santa Barbara Goleta and/or the Courtyard Santa Barbara Goleta at any time during the Class Period. (Agreement, ¶ 10, subd. (d).) “PAGA Members” means all current and former non-exempt employees of the Companies in California employed at the Residence Inn Santa Barbara Goleta and/or the Courtyard Santa Barbara Goleta at any time during the PAGA Period. (Agreement, ¶ 10, subd. (w).)

The Class consists of approximately 329 Class Members who collectively worked an estimated total of 13,866 workweeks. (Bass decl., ¶ 18.)

The non-revisionary gross settlement amount is \$325,000.00 and is inclusive of payments to the class, class counsels' fees, class counsels' costs, settlement administration costs, incentive payments to plaintiffs, and payment of PAGA penalties. (Bass decl., ¶ 12; Agreement, ¶ 10, subd. (kk).)

The parties agreed to the following payments from the gross settlement amount:

An "Enhancement Payment" to Cahill of \$10,000.00 (Agreement, ¶ 17.);

Attorneys' Fees of not more than forty percent of the amount, which is currently estimated to be \$130,000.00, and legal costs of not more than \$25,000.00 (Agreement, ¶ 16.);

Settlement Administration Costs not to exceed \$10,000.00 to ILYM Group, Inc. (ILYM) (Agreement, ¶ 18; Bass decl., ¶ ¶ 12, 15.);

PAGA penalties in the amount of \$30,000.00 to be paid 75 percent to the LWDA and 25 percent to the individual PAGA payments. (Agreement, ¶ 19.)

Fifty percent of each participating class member's individual class payment will be allocated to settlement of wage claims, which are subject to tax withholding and will be reported on an IRS W-2 Form. (Agreement, ¶ 31.) Fifty percent of each participating class member's individual class payment will be allocated to settlement of claims for interest and penalties, which are not subject to wage withholdings and will be reported on IRS 1099 Forms, and participating class members will assume full responsibility and liability for any employee taxes owed on those payments. (Ibid.; Agreement, ¶ 33.)

Proposed Class Counsel, Joanna Ghosh, Yasmin Hosseini, and Daniel Bass of Lawyers for Justice, PC, seek preliminary approval to request attorneys' fees in an amount not to exceed forty percent of the gross settlement amount, which is currently estimated to be \$130,000.00, plus costs not to exceed \$25,000.00. In the event the court awards class counsel less than this requested amount, the difference shall become part of the net settlement amount and shall be distributed to participating class members as part of their individual settlement awards. (Agreement, ¶ 16.)

For settlement purposes only, the parties agree to the designation of Cahill as the class representative and request a class representative service award of \$10,000.00. (Agreement, ¶ 17.)

The parties agree that ILYM Group, Inc. shall be the settlement administrator and shall be paid settlement administration costs, not to exceed \$10,000.00, to be paid from the gross settlement amount. (Agreement, ¶ 10, subd. (hh); Bass decl., ¶ 15.)

Within 30 days of the court granting preliminary approval of the settlement, defendants will deliver the Class List to ILYM. (Agreement, ¶ 23.)

The Court has carefully analyzed the terms of the settlement, including the nature and scope of the release it requires of absent class members and the representative plaintiffs. The Court finds, generally, that it is within the range of acceptable settlements.

Substantial investigation and discovery was conducted, giving rise to an informed settlement considering the risks of further litigating the action through trial. The case involves experienced class counsel, who believe the settlement is fair, reasonable, and in the best interests of the class members. The settlement was achieved through extensive arms-length negotiations and was not collusive.

The proposed Notice of Proposed Settlement of Class Action and Hearing Date for Final Court Approval is attached as Exhibit A to the agreement.

"If the court has certified the action as a class action, notice of the final approval hearing must be given to the class members in the manner specified by the court. The notice must contain an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any objections to the proposed settlement." (Cal. Rules of Court, rule 3.769(f).)

" ' "The principal purpose of notice to the class is the protection of the integrity of the class action process. . . ." ' " [Citation.] " 'The notice ' " 'must fairly apprise the class members of the terms of the proposed compromise and of the options open to the dissenting class members.' " ' " [Citation.] A class action settlement notice should present information neutrally, simply, and understandably. The notice should allow class members to evaluate a proposed settlement. Notice should describe the formula or plan for computing individual settlement class member recoveries." (Duran v. Obesity Research Institute, LLC (2016) 1 Cal.App.5th 635, 644.)

The Notice of Proposed Settlement of Class Action and Hearing Date for Final Court Approval is sufficient and complies with all applicable requirements.

The motion asks the court for an order provisionally certifying the settlement class. The class is ascertainable from defendants' records and is so numerous that joinder of all members is impracticable. There are questions of law or fact common to the proposed class, and there is a well-defined community of interest among its members with respect to the subject matter of the litigation.

It appears to the court that the claims of the class representative are typical of the claims of the members of the proposed class, and that he is positioned to fairly and adequately protect the interests of the class members. It also appears to the court that proposed class counsel is experienced and qualified in wage and hour class litigation and will properly and adequately represent the interests of the absent class.

The court further finds that the PAGA claim class is appropriate and the terms of the PAGA settlement are, generally, fair and reasonable.

Judges

Judge Donna D. Geck

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